SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES, II
HEARING DATE: 05/20/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

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Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
***CASE MANAGEMENT CONFERENCE TRIAL SETTING CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 4. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 4 is uncontested, this CMC is continued to August 18, 2026 at 8:30 a.m. Parties are ordered to file a further CMC statement.

2. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 11. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 11 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

3. 9:00 AM CASE NUMBER: C25-03661
CASE NAME: KELLEN KIRK VS. TESLA, INC.,
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 14. Counsel and parties are ordered to appear in person or via Zoom for the CMC. If the tentative ruling for Line 14 is uncontested, this CMC is continued to November 17, 2026 at 8:30 a.m. Counsel are ordered to file a further CMC statement.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-01776
CASE NAME: MARK FROHNEN VS. ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ALAMO RIDGE SUBDIVISION 6419 ASSOCIATION
****TENTATIVE RULING:****

I. Motion and Opposition

Before the Court is Defendant Alamo Ridge Subdivision 6419 Association's ("Defendant," "Cross-Complainant," or "the HOA") motion for summary judgment or, in the alternative, for summary adjudication. The motion is opposed by Plaintiffs Mark and Eileen Frohnen ("Plaintiffs," "Cross-Defendants," "the Frohnens"). This motion relates to Plaintiffs' complaint for (1) breach of governing documents; (2) slander of title; (3) negligence; and (4) declaratory relief, and Defendant's cross-complaint for (1) negligence; (2) breach of contract; (3) nuisance; (4) premises liability; (5) equitable indemnity; and (6) declaratory and injunctive relief.

Defendant moves for summary judgment or, in the alternative, summary adjudication, of Plaintiffs' complaint on the grounds that (1) Plaintiffs' causes of action for breach of governing documents and negligence fail as a matter of law because it is undisputed that Defendant did not breach any duties it owed to Plaintiffs under the governing documents or otherwise; (2) the cause of action for slander of title fails as a matter of law because it is undisputed that the lien amount assessed on Plaintiffs' property was without malice or reckless disregard; and (3) the declaratory relief cause of action is derivative of Plaintiffs' other causes of action.

Plaintiffs oppose this motion. They contend that the scope of the HOA's maintenance obligations under the CC&Rs is disputed, that causation cannot be resolved as a matter of law on this record, and that the slander of title and declaratory relief claims present independent triable issues.

In this same motion, Defendant/Cross-Complainant also seeks summary judgement, or in the alternative, summary adjudication, of its own Cross-Complaint. It does so on the grounds that (1) as to the causes of action for negligence and premises liability, it is undisputed that Plaintiffs/Cross-Defendants had a duty to maintain the drainage system and slope on their property and they breached that duty; (2) as to their breach of contract cause of action, it is undisputed that Plaintiffs/Cross-Defendants were bound by the CC&Rs to continuously maintain the slope on their property and indemnify other owners in the subdivision against damage to the roadway caused by their own negligence, and they failed to meet either of these obligations; (3) as to its cause of action for nuisance, Plaintiffs/Cross-Defendants knew or should have known that their property was prone to landslides and failed to render preventative maintenance on it; and (4) as to its causes of action for equitable indemnity and declaratory and injunctive relief, Defendant/Cross-Complainant is entitled to equitable indemnity from Plaintiffs/Cross-Defendants as a matter of law, and a judicial determination is necessary and appropriate so that the parties may ascertain their respective rights and duties towards each other.

Plaintiffs oppose this motion. They contend that causation cannot be established as a matter of law, that the HOA's maintenance obligations under the CC&Rs preclude its breach of contract and nuisance claims, and that the equitable indemnity and declaratory relief claims fail on independent grounds.

For the following reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED.**

II. Request for Judicial Notice

Defendant, in support of the instant motion, requests judicial notice of the operative Complaint and Cross-Complaint in this action.

A court may take judicial notice of court records pursuant to Evidence Code section 452(d).

Defendant's unopposed request for judicial notice is **GRANTED**.

III. Legal Standard

A party may move for summary judgment if it contends that a cause of action lacks merit. (Code Civ. Proc § 437c(a)(1).) A cause of action lacks merit if one or more of its elements cannot be established or if the defendant establishes an affirmative defense. (Code Civ. Proc. §437c(o).) To succeed on a motion for summary judgment, a defendant must conclusively negate a necessary element of the plaintiff's case and demonstrate that under no hypothesis embodied in the complaint is there a material issue of fact that requires the process of a trial. (*Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107; *Kelleher v. Empresa Hondurena de Vapores, S.A.* (1976) 57 Cal.App.3d 52, 58.) "When the defendant moves for summary judgment and makes a *prima facie* showing that one or more elements of the plaintiffs' cause of action cannot be established, the burden shifts to the plaintiff to make a *prima facie* showing that the element in question can be established." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

Where a party moves for summary judgment or adjudication not to defeat an opponent's claims but to obtain affirmative judgment on its own, a plaintiff (or cross-complainant standing in the plaintiff's position) bears the burden of proving each element of its own cause of action and that there is no defense thereto. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving party must present evidence sufficient to establish every element of the claim such that no reasonable trier of fact could find in the opposing party's favor. (*Ibid*.) "If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, quoting *Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.) Only if the moving party meets that initial burden does it shift to the opposing party to demonstrate a triable issue of material fact. (Code Civ. Proc § 437c(p)(1).)

There exists a triable issue of material fact if the evidence, viewed in the light most favorable to the opposing party, is such that a reasonable trier of fact could find the underlying fact in favor of the opposing party by the applicable standard of proof. *(Aguilar*, *supra*, 25 Cal.4th at 850, *Reader's Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 252.) "When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi*, *supra*, 159 Cal.App.4th at 467.)

IV. Factual and Procedural Background

This case arises out of a dispute between a homeowner's association ("HOA") and homeowner-residents over the assignment of liability for the alleged failure of a storm sewer system in a residential development that resulted in a landslide.

Plaintiffs Mark and Eileen Frohnen live in Alamo, California, at 2205 Las Trampas Road. (Complaint ("Compl.") at 2:9-14.) Their home, which they purchased in 1998, is among 19 residences situated on a hillside in the Alamo Ridge Subdivision 6419 ("Alamo Ridge" or "the Subdivision") and is subject to the authority of the HOA under the Subdivision's governing documents. (*Id*. at 1:21-24, 2:27-3:2, 3:4-5.) These governing documents were most recently restated in 2011 in "the First Restated Declaration of Covenants, Conditions, and Restrictions for Alamo Ridge Subdivision 6419 Association of 2011 (the CC&Rs") and the By-Laws of the Alamo Ridge Subdivision 6419 Association ("the By-Laws"). (*Id*. at 4:16-24, Exhibits B, C.)

The CC&Rs define the HOA's role as follows:

> The Association…shall be charged with the duties and invested with the powers set forth in the Articles, the By-Laws and these CC&Rs. The primary purpose of the Association is to maintain Las Trampas Road from the security gate to the end of Las Trampas Road, all

> easements therefore, the main gate and storm sewers.

(Compl. Exhibit B, CC&Rs § 3.1)

To execute this mandate, the HOA holds right of entry onto owners' lots via easements. (Compl. at 4:1-7; Exhibit B, CC&Rs § 9.14).) The CC&Rs assign responsibility for maintenance of the easements, the storm sewer system situated on them, and the roadway in various ways as follows. Section 9.14 of the CC&Rs provides that these reserved easements are meant for "installation and maintenance of utilities and drainage facilities" but also that "[t]he easement area of such lot and all improvements in it shall be maintained continuously by the Owner of the lot, except for those improvements for which a public authority utility company is responsible." (Compl. Exhibit B, CC&Rs § 9.14.) Meanwhile, the CC&Rs also provide, as quoted above from section 3.1, that maintenance of "all easements therefore, the main gate and storm sewers" is among the HOA's "primary purpose[s]." (Compl. Exhibit B, CC&Rs § 3.1) Additionally, section 11.7(5) provides in relevant part:

> The Owners, their heirs, successors and assigns shall properly maintain the Roadways in good condition…The Storm Sewer System shall similarly be maintained in good and operable condition…[T]he Owners may from time to time hire contractors, engineers or other qualified persons or entities to repair and maintain the Roadway and/or Storm Sewer System…Each Owner shall repair and indemnify the other Owners against any liability for damage to the Roadway or Storm Sewer System caused by the intentional or negligent acts of said Owner.

(Compl. Exhibit B, CC&Rs § 11.7(5).)

The Subdivision's storm sewer system collects runoff from the top of the hill on which the Subdivision is situated and ushers it from the end of Las Trampas Road, which is graded to direct the flow, into a catch basin at the lowest point of a cul-de-sac serving the Frohnens and four neighboring properties at 2219 Las Trampas Road. (Compl. at 9:8-13; Thomas Blackburn Declaration ("Blackburn Dec.") at 3:6-9.) From there, a 12-inch pipe carries the stormwater to a junction box located on the 2219 lot, where it is redirected at approximately a 90-degree angle into a second 12-inch pipe aimed directly toward the Frohnens' property. (Blackburn Dec. at 3:10-13.) That pipe continues over the Frohnens' property and discharges into a natural drainage swale improved in portions by rip-rap ("the Improved Swale"), which descends steeply down the hillside. (*Id*. at 3:14-18, Compl. at 9:14-21.) The Improved Swale terminates at a flat area above the landslide zone; the flat area contains no defined channel capable of directing stormwater flows. (Blackburn Dec. at 3:18-20; Douglas N. Akay Declaration ISO Plaintiffs' Opposition to MSJ/MSA ("Akay Dec.") Exhibit C, Exhibit 5 attached to Ralph Briggs Wood Deposition.) From the lower improved swale, runoff discharges into an asphalt swale paralleling the road, drops into a catch basin, and empties into Las Trampas Creek. (*Id*. at 3:26-28.)

Plaintiffs allege that despite the HOA's mandate, it performed only sporadic storm sewer work over the decades, with no meaningful inspection or repair of the hillside run-off components for at least 10 years before the subject landslide. (Compl. 8:21-27.)

Beginning in the fall of 2022, a series of atmospheric river storms saturated the Bay Area, including the hillside at Alamo Ridge. (Compl. at 10:24-27.) On December 31, 2022, which was the third day of at least the sixth such storm to hit the Bay Area in the series, the storm sewer system failed in the lower portion of the ravine on 2219 Las Trampas Road. (*Id*. at 10:28-11:3.) It is the opinion of the Plaintiffs' expert, geotechnical engineer Thomas Blackburn, that because no defined swale existed in the flat area described *ante*, stormwater discharged from the upper Improved Swale slowed, spread across the flat area, saturated it, and triggered a landslide. (Blackburn Dec. at 3:26-28.) The resulting erosion and tree collapse sent topsoil and fallen trees down the hillside and onto lower Las Trampas Road. (Compl. at 11:6-11.) The Frohnens allege the failure resulted from design deficiencies and the HOA's years of neglect of the hillside run-off components. (*Id*. at 11:17-12:4.) The HOA contends that the landslide instead resulted from years of the Frohnens' neglect of the hillside on their property despite inquiry notice of the fact that their hillside was prone to landslides. (Separate Statement of Undisputed Facts ("SSUF") Nos. 18-22.)

Section 5.5(a)(1) of the CC&Rs provides in relevant part that in the event of damage "caused by the willful misconduct or negligent act or omission of any Owner" to any portion of the roadway or storm sewer system that the HOA is obligated to maintain and repair, the HOA will make the repair and a special individual assessment will be charged to that owner. (Compl. Exhibit B, CC&Rs § 5.5(a)(i).) Section 5.5(a) also requires that no special assessment is levied on an owner until he or she is afforded notice and hearing rights. (*Id*. at Exhibit B, CC&Rs § 5.5(a).)

Within weeks of the landslide, without any investigation into causation, the HOA assigned responsibility for the event to the Frohnens on the basis that the debris that came to rest on lower Las Trampas Road originated from the Frohnens' property. (Compl. at 12:6-13; Declaration of Mark Frohnen iso plaintiffs' opposition to MSJ ("M. Frohnen Dec.") Exhibit B.)

At a January 9, 2023 Architectural and Maintenance Committee meeting the three members of the committee (Ralph Briggs Wood, Howard Guild, and Stephen Hamill) concluded that responsibility for the landslide cleanup fell to the Frohnens based on the origin of the debris and the CC&Rs. (Akay Dec. Exhibit C, Exhibit 4 to the Ralph Briggs Wood Deposition.) Mr. Frohnen and other Subdivision homeowners were present. (*Ibid*.)

The Architectural and Maintenance Committee held another meeting on February 22, 2023, to discuss assignment of responsibility for the costs of the landslide clean up. (Reply Dec. Darren J. Chetcuti ("Chetcuti Reply Dec.") Exhibit L.) Minutes from the meeting indicate that Mr. Frohnen was not present at the February 22 meeting, however they do state that another meeting was held with Mr. Frohnen "to discuss the responsibility of the issue." (*Ibid*.) The minutes state that "Frohnen cited the areas of the Association/Subdivision's governing documents which denied Frohnen's liability," and the HOA's attorney, who had reviewed Frohnen's positions, concluded "that they had no standing" such that the HOA could place a lien on the Frohnens' property to pay for the cleanup. (*Ibid*.)

On or around February 24, 2023, the HOA presented the Frohnens with a bill for the cost of clearing the road of debris in the amount of $127,347; the bill lacked itemization. (Compl. at 12:19-21.) The Frohnens refused to pay. (*Id*. at 14:13-17.) The HOA's position was and remains that location, and not cause, is the relevant factor as to assigning responsibility for the landslide and its consequences. (Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5.)

On May 23, 2023, pursuant to sections 6.1 and 6.2 of the CC&Rs, the HOA recorded a lien of $127,347 against the Frohnens' property. (*Id*. at 14:20-22.)

The Frohnens have historically had a fraught relationship with the HOA and some of their neighbors. (M Frohnen Dec., Exhibit C; Declaration of Darren J. Chetcuti in support of motion for summary judgment ("Chetcuti Dec."), Exhibits A, B, C.) In a 2011 article in the East Bay Times wherein the Frohnens are quoted complaining that the Subdivision's posted speed limit was higher than that authorized by the CC&Rs, secretary of the Architectural and Maintenance Committee Ralph Briggs Wood was quoted as saying of the Frohnens, "[y]ou've got one weirdo (home) up here…It's almost like they want to agitate."

Plaintiffs filed the instant suit on July 20, 2023, asserting causes of action for breach of governing documents, slander of title, negligence, and declaratory relief. Defendant filed its Cross-Complaint on July 18, 2024, asserting causes of action for negligence, breach of contract, nuisance, premises liability, equitable indemnity, and declaratory and injunctive relief. The instant motion was filed December 8, 2025.

V. <u>Analysis</u>

As an initial matter, the Court notes a significant structural irregularity in the instant motion. Defendant Alamo Ridge Subdivision 6419 Association moves for summary judgment, or in the alternative, summary adjudication, simultaneously as a *defendant* seeking to defeat Plaintiffs' complaint and as a *cross-complainant* seeking affirmative judgment on its own Cross-Complaint. These are two distinct procedural postures with different burdens of proof in a single combined motion with a single combined separate statement.

This posture is procedurally problematic for several reasons.

First, Code of Civil Procedure section 437c uses the singular throughout, for example: "[a] party may move for summary judgment in *an action* or proceeding if it is contended that *the action* has no merit or that there is no defense to *the action* or proceeding" and "[a] party may move for summary adjudication as to one or more causes of action within *an action*." (Code Civ. Proc., § 437c(a)(1), (f)(1), (emphasis added).) The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another." (Code Civ. Proc., § 22.) A complaint and a cross-complaint, though filed under the same case number, are separate, independent actions. (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134.) As such, there are two separate simultaneous actions pending in this case, yet section 437c does not contemplate a single motion attacking both as Defendant has done here.

Second, section 437c(f)(2) provides that a motion for summary adjudication "may be made by itself *or* *as an alternative to a motion for summary judgment*." This alternative structure operates within a single proceeding. Styling a combined motion as "summary judgment, or in the alternative, summary adjudication" as to two separate pleadings simultaneously stretches that mechanism beyond its intended scope, as it asks the Court to adjudicate not one but two proceedings in a single motion, each requiring its own showing and each permitting its own alternative relief.

Third, each motion for summary judgment or adjudication requires a separate filing fee under Government Code section 70627. A single fee appears to have been paid for what is functionally at least two motions.

Fourth, while the separate statement partially demarcates facts by cause of action, it includes many facts not identified with any specific issue raised by the motion. This leads to confusion about what is material and relevant. Because the burden-shifting framework under section 437c(p) operates at the element level, the Court's analysis below proceeds accordingly.

The Court declines to deny the motion in its entirety on these grounds alone. Both sides have fully briefed the merits as to all causes of action across both pleadings, and no party has been meaningfully prejudiced in its ability to respond. Accordingly, the Court addresses the Complaint and Cross-Complaint separately below, however counsel for Defendant is nonetheless admonished that the combined motion practice employed here does not comply with Code of Civil Procedure section 437c.

A. Plaintiffs' Complaint

i. Breach of Governing Documents

To prevail on a breach of contract claim, the plaintiff must prove (1) the existence of a contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) A cause of action for breach of governing documents is a breach of contract claim. (*Harvey v. The Landing Homeowners Assn.* (2008) 162 Cal.App.4th 809, 817.) CC&R's are interpreted with a view toward enforcing the reasonable and mutual intent of the parties at the time of contracting so far as it is ascertainable and lawful. (*Ibid;* Civ. Code, § 1636.) "The interpretation of a contract is a judicial function." (*Wolf v. Walt Disney Pictures & Television* (2008) 162 Cal.App.4th 1107, 1125.) Where the language is clear, explicit, and does not involve an absurdity, the language of the CC&R's governs, and words are interpreted in their ordinary and popular sense unless a contrary intent is shown. (*Harvey*, *supra*, 162 Cal.App.4th at 817; Civ. Code, § 1638.)

Where, however, the court is "[f]aced with contract language that is reasonably susceptible to more than one meaning, certain general rules of contract interpretation come into play to aid the court in resolving the ambiguity." (*Southern Pacific Transportation Co. v. Santa Fe Pacific Pipelines, Inc.* (1999) 74 Cal.App.4th 1232, 1240.) When the meaning of contract language is disputed, a court engages in a three-step process. (*Wolf*, *supra*, 162 Cal.App.4th at 1126.) First, the court provisionally receives proffered extrinsic evidence relevant to prove a meaning to which the contract language is reasonably susceptible. (*Ibid; Pacific Gas & E. Co. v. G. W. Thomas Drayage etc. Co.* (1968) 69 Cal.2d 33, 37.) Second, if the court finds the contract language is reasonably susceptible to the interpretation urged in light of the extrinsic evidence proffered, the evidence is admitted to aid in interpretation. (*Pacific Gas & E. Co.*, *supra*, 69 Cal.2d at 39-40.) Third, where the court finds no conflict in the extrinsic evidence, the court interprets the contract as a matter of law. (*City of Hope National Medical Center v. Genentech, Inc.* (2008) 43 Cal.4th 375, 395.) However, when "ascertaining the intent of the parties at the time the contract was executed depends on the credibility of extrinsic evidence, that credibility determination and the interpretation of the contract are questions of fact that may properly be resolved by the jury." (*Ibid*; *Morey v. Vannucci* (1998) 64 Cal.App.4th 904, 912-913.) Summary judgment is therefore improper where the contract is susceptible to competing reasonable interpretations supported by conflicting extrinsic evidence.

Extrinsic evidence, including course of performance evidence, is admissible not only to resolve an obvious ambiguity but to expose a latent one. (*Wolf*, *supra*, 162 Cal.App.4th at 1126; *Southern Pacific Transportation Co.*, *supra*, 74 Cal.App.4th at 1241; *Employers Reinsurance Co. v. Superior Court* (2008) 161 Cal.App.4th 906, 920.)

The central questions – what the CC&Rs require of the HOA with respect to the maintenance of the storm sewer system, whether and to what extent individual owners must cooperate in that maintenance, and where the storm sewer system starts and ends – cannot be resolved as a matter of law.

As Plaintiffs note, CC&Rs sections 3.1 and 3.10(a) designate maintenance of the easements and storm sewers as the HOA's primary purpose, and the By-Laws reinforce this mandate. (Akay Dec. Exhibit A §§ 3.1, 3.10(a), Exhibit B § 1.3.) Meanwhile, CC&Rs sections 11.7(5) and 9.14 seem to impose owner obligations on these same duties. (*Id*. Exhibit A §§ 9.14, 11.7(5).) For example, section 3.1 designates the maintenance of the storm sewer system to the HOA and then section 11.7(5) provides that "[t]he Owners, their heirs, successors and assigns shall properly maintain the Roadways in good condition…The Storm Sewer System shall similarly be maintained in good and operable condition."(Akay Dec. Exhibit A CC&Rs §§ 3.1, 11.7(5).)

Also of note is the fact that the term "owner" is not clearly defined in the CC&Rs, and it is utilized in what appear to be multiple forms throughout the document. (Response to def's separate statement of undisputed material facts ("RSSUMF") No. 4.)

The closest the CC&Rs come is section 4.1's definition of the qualifications required for "Ownership." It states that: "Ownership of a lot (defined as a person on title recorded with the Contra Costa County Recorder's Office) in the Development, or interest therein, shall be the sole qualification for and entitlement to Ownership in the Association." (Akay Dec. Exhibit A § 4.1.)

This definition does not resolve the tension inherent in, for example, section 11.7(5), which refers to the duty of "[t]he Owners" to properly maintain the roadway and storm sewers, in seeming direct conflict with sections 3.1 and 3.10(a). This tension continues where section 11.7(5) goes on to state that "the Owners may from time to time hire contractors, engineers or other qualified persons or entities to repair and maintain the Roadway and/or Storm Sewer System or to act in furtherance of the maintenance of the Roadway and storm sewer system…" Then section 11.7(5) goes on to add yet another usage where it states that "[e]ach Owner shall repair and indemnify the other Owners against any liability for damage to the Roadway or Storm Sewer System caused by the intentional or negligent acts of said Owner."

In the context of the other provisions of the CC&Rs and By-Laws, it is unclear whether these references to "Owners" in the plural in section 11.7(5) refer to the owners collectively as the HOA, the owners individually, or the owners in cooperation *with* the HOA, as Defendant contends. (Memorandum of Points and Authorities in support of Motion for Summary Judgment ("MSJ") at 7:11-24.)

The above provisions are in genuine tension as applied to the duty to maintain the storm sewer system components crossing private lots, and neither party's reading is unreasonable on its face. Given the ambiguity of this language, the Court next considers the proffered extrinsic evidence. (*Pacific Gas & E. Co.*, *supra*, 69 Cal.2d at 37.)

Here, the extrinsic evidence does not resolve the ambiguity. Defendant points to a pattern of individual owners paying for roadway damage originating from their lots. (MSJ at 11:4-10; SSUF Nos. 86, 87, 88.) In contrast, Plaintiffs point to the Toma incident, in which the Frohnens' neighbor at 2219 Las Trampas Road experienced a pipe failure causing soil erosion on the neighbor's private lot in 2013-2014; in that case the HOA board chair stated that the "HOA would take care of it" and reimbursed that owner for repairs. (Opp. at 12:6-14; Akay Dec. Exhibit C Ralph Briggs Wood Deposition at 70:16-72:17.) Defendant characterizes this reimbursement as limited to a mechanically attached outfall pipe; Plaintiffs read it more broadly. (Reply Brief in Support of Summary Judgment ("Reply") at 3:10-16; Opp. at 12:5-14.) These competing characterizations raise a credibility dispute for the trier of fact. (*City of Hope National Medical Center*, *supra*, 43 Cal.4th at 395; *Morey*, *supra*, 64 Cal.App.4th at 912-913.)

In reply, Defendant invokes *Dover Village Assn. v. Jennison* (2010) 191 Cal.App.4th 123, 129, for the proposition that a storm sewer system consists of interconnected pipes feeding into a common line, and argues that its maintained infrastructure – gutters, grates, catch basins, drain pipes, and outfall pipes – fits precisely that description. (Reply at 2:21-3:4.) This is in contrast to Plaintiffs' expert Thomas Blackburn's definition, which includes open channels and surface flows on private hillsides. (Blackburn Dec. at 2:8-15.) *Dover* does not resolve where the interconnected system ends as applied to the engineered rip-rap improvements and junction box at issue here, that is the disputed factual question itself.

The extent of the HOA and owners' responsibility for the maintenance of the storm sewer system and the scope of that sewer system is in dispute. Ascertaining the intent of the parties at the time the contract was executed depends on the credibility of competing extrinsic evidence, therefore, that credibility determination and the interpretation of the contract are questions of fact to be resolved by a trier of fact. (*City of Hope National Medical Center*, *supra*, 43 Cal.4th at 395; *Morey*, *supra*, 64 Cal.App.4th at 912-913.)

Accordingly, the motion for summary adjudication of the cause of action for breach of governing documents is **DENIED**.

i. Slander of Title

To state a claim for slander of title a plaintiff must establish (1) a false statement disparaging title; (2) published to a third party; (3) made with express or implied malice and absence of justification; (4) causing direct pecuniary loss. (*Howard v. Schaniel* (1980) 113 Cal.App.3d 256, 264; *Cyr v. McGovran* (2012) 206 Cal.App.4th 645, 651.) A claim for slander of title requires a showing that the statements "were maliciously made with the intent to defame and thereby disparage the title involved." (*Howard*, *supra*, 113 Cal.App.3d at 263.)

Here, Plaintiffs' cause of action contends the recording of a lien on their property, based on costs that were Defendant's responsibility, was slander of title. Defendant argues Plaintiffs cannot show malice because the costs were actually incurred and Plaintiffs refused to pay them. This position is based on the defense that the alleged slanderous statement was true and valid, an issue that is in dispute, as described above.

The validity of the underlying assessment is genuinely disputed, and malice presents a triable issue on this record. The malice question turns on whether the HOA had a good faith basis for the lien at the time it was recorded. Defendant contends the lien was recorded in good faith pursuant to CC&Rs section 5.5(a) after proper notice and a February 22, 2023 hearing at which Mr. Frohnen's contentions were considered and rejected. (Reply at 4:24-25; Chetcuti Reply Dec. Exhibit L.) Plaintiffs argue the assessment was unauthorized because section 5.5(a) conditions a special individual assessment on a finding of willful misconduct, omission, or negligence by an owner, and HOA conducted no causation investigation before assigning liability based solely on the provenance of the debris that came to rest on Las Trampas Road. (Opp. at 12:25-13:9, Akay Dec. Exhibit C, Ralph Briggs Wood Deposition at 90:10-19.)

Defendant deliberately and explicitly conducted no investigation as to the cause of the landslide, despite that Defendant's own Separate Statement characterizes section 5.5(a) as permitting assessment only against an owner who "*causes* damage" to the roadway or storm sewer system. (SSUF No. 60 (emphasis added); Akay Dec. Exhibit C, Exhibit 5 to the Ralph Briggs Wood Deposition, M. Frohnen Dec. Exhibit B.) The HOA's admission that it treated location rather than causation as the operative factor in levying the assessment is in tension with that predicate. (Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5; M. Frohnen Dec. Exhibit B.) Whether proceeding to record a six-figure lien on that basis constitutes reckless disregard for the truth is a question for the trier of fact.

The HOA's omission theory advanced in reply does not resolve this. Even accepting that section 5.5(a)'s omission prong requires no affirmative negligence finding, whether the HOA had a good faith basis for the lien given its admitted failure to investigate causation remains disputed.

Accordingly, the motion for summary adjudication of the cause of action for slander of title is **DENIED**.

i. Negligence

A plaintiff must make a showing of four elements to support a claim for negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendant's breached duty; and (4) damages. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 141. An HOA has a duty to maintain common areas. (Civ. Code, § 4775.) "Common area" means the entire common interest development except the separate interests therein. (Civ. Code, § 4095.)

Plaintiff asserts that Defendant was negligent because it did not comply with its duties to perform inspections, repairs, and maintenance to the HOA storm sewer system. Defendant argues Plaintiffs cannot show breach, but they do not provide any material facts related to their fulfilling the alleged duty before the landslide.

Defendant cites to separate statement fact No. 65 for the contention that the Architectural and Maintenance Committee "conducts monthly maintenance of Las Trampas Road, including clearing debris from the storm drain near the Subject Property," however fact No. 65 only states that "Carlos Sanchez is hired by the Architectural and Maintenance Committee to provide monthly maintenance of *Las Trampas Road*." (MSJ at 11:28-12:2; SSUF No. 65 (emphasis added).)

In support of the contention that Plaintiffs cannot establish Defendant breached its duty, Defendant also contends that a photograph taken shortly after the landslide shows that the storm sewer system was working and water was flowing freely through it such that "that drain acted as it was intended to that day and had no relation to the landslide." (MSJ at 12:2-8; SSUF No. 76.) This does not suffice to show Plaintiffs are unable to prove negligence and is inadequate to shift the initial burden to plaintiffs.

Whether the HOA owed a duty to maintain the storm sewer system components at issue cannot be resolved as a matter of law for the reasons discussed *ante* in the breach of governing documents section. Because the scope of the HOA's maintenance obligation, and thus its compliance with the obligation, is a triable issue of fact, summary judgment on this cause of action is likewise improper.

Accordingly, the motion for summary adjudication of the cause of action for negligence is **DENIED**.

j. Declaratory Relief

To qualify for declaratory relief a plaintiff must make a showing of two elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.) A claim for declaratory relief fails when it is "'"wholly derivative" of other failed claims.'" (*Smyth v. Berman* (2019) 31 Cal.App.5th 183, 191-192 quoting *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800.)

Here, Plaintiffs' declaratory relief claim is derivative of the breach of governing documents and negligence claims. A genuine ongoing controversy exists regarding the respective maintenance obligations of the HOA and the individual owners under the CC&Rs. Specifically, there is a controversy over whether the HOA's location rather than causation assessment policy is enforceable under the CC&Rs and the Davis-Stirling Act. The Frohnens remain owners in the Subdivision and subject to that policy going forward. Because the underlying CC&Rs interpretation dispute survives summary judgment for the reasons discussed *ante*, the declaratory relief survives with it.

Accordingly, the motion for summary adjudication of the cause of action for declaratory relief is **DENIED**.

B. Defendant's Cross-Complaint

i. Negligence and Premises Liability

Plaintiffs (or cross-complainants, as we have here) must make a showing of four elements to support a claim for negligence: (1) the defendant had a legal duty of care to the plaintiff; (2) the defendant breached that duty; (3) the plaintiff suffered an injury because of the defendant's breached duty; and (4) damages. (*Williams*, *supra*, 185 Cal.App.3d at 141.) Premises liability is a form of negligence. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

> Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the latter has, willfully or by want of ordinary care, brought the injury upon himself or herself.

(Civ. Code, § 1714.)

The HOA's Cross-Complaint negligence and premises liability claims depend on establishing as a matter of law that the Frohnens owed a duty to maintain the storm sewer system components at issue. The questions cannot be resolved on this record for the reasons discussed *ante* in the breach of governing documents section. Because the scope of individual owner maintenance obligations under the CC&Rs is a triable issue of fact, summary adjudication on these claims is likewise improper.

Accordingly, the motion for summary adjudication of the causes of action for negligence and premises liability is **DENIED**.

i. Breach of Contract

To prevail on a breach of contract claim, the plaintiff (or cross-complainant) must prove (1) the existence of a contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach, and (4) resulting damage to the plaintiff. (*Richman*, *supra*, 224 Cal.App.4th at 1186.) "The interpretation of a contract is a judicial function." (*Wolf*, *supra*, 162 Cal.App.4th at 1125.)

The HOA's breach of contract claim depends on the validity of the CC&Rs section 5.5(a) assessment, yet Cross-Complainant's motion does not identify with specificity the CC&Rs provisions the Frohnens allegedly breached, instead directing the Court to blocks of separate statement of undisputed material fact numbers from which the breach theory must be reconstructed.

On the merits, section 5.5(a) conditions a special individual assessment on damages caused by an owner's willful misconduct, negligent act, or omission. (Compl. Exhibit B, CC&Rs § 5.5(a)(i).) As discussed *ante* in the slander of title section, the HOA's own separate statement characterizes section 5.5(a) as requiring a causal connection between the owner's conduct (or omission) and the damage, yet the HOA admittedly made no causation determination before levying the assessment. (SSUF No. 60; Akay Dec. Exhibit C, Exhibit 5 to the Ralph Briggs Wood Deposition; Akay Dec. Exhibit E, Howard Guild Deposition at 138:16-139:5; M. Frohnen Dec. Exhibit B.) Whether the assessment was contractually authorized under those circumstances is a triable issue of fact. Whether the Frohnens' maintenance history constituted a breach of their CC&Rs obligations, or whether the HOA's own failure to maintain the storm sewer system was a prior material breach excusing any alleged nonperformance, presents further triable issues that cannot be resolved on this record.

Accordingly, the motion for summary adjudication of the cause of action for breach of contract is **DENIED**.

i. <u>Nuisance</u>

A private nuisance claim requires conduct by the defendant that directly and unreasonably interferes with the plaintiff's use and enjoyment of land or creates a condition that does so. (*Lussier v. San Lorenzo Valley Water Dist.* (1988) 206 Cal.App.3d 92, 100.) "[W]here injury is allegedly caused by a natural condition, the imposition of liability on a nuisance theory, as a practical matter, requires a finding that there was negligence in dealing with it." (*Id*. at 102.)

Here, whether the Frohnens were negligent in managing their property – the predicate for nuisance liability based on a natural condition – is a triable issue of fact for the reasons discussed *ante* in the Cross-Complaint negligence section. Even assuming *arguendo* that the landslide was not purely a natural condition, whether the Frohnens' conduct or omissions were a substantial factor in causing the resulting interference with the roadway is equally a triable issue of fact for the same reasons.

The Court further notes that Defendant's own moving papers disclaim ownership of Las Trampas Road, presenting an additional potential standing issue the Court need not resolve given the triable issues identified above. (SSUF No.2; MSJ at 2:5-7.)

Accordingly, the motion for summary adjudication of the cause of action for nuisance is **DENIED**.

j. <u>Equitable Indemnity</u>

To state a claim for equitable indemnity, a plaintiff must demonstrate "(1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is contractually or equitably responsible." (*Expressions at Rancho Niguel Assn. v. Ahmanson Developments, Inc.* (2001) 86 Cal.App.4th 1135, 1139.) "It is well established that the right to indemnity flows from payment of a joint legal obligation on another's behalf." (*Union Pac. Corp. v. Wengert* (2000) 79 Cal.App.4th 1444, 1448.)

Here, the HOA's equitable indemnity claim has an independent threshold problem: the right to equitable indemnity flows from payment of a joint legal obligation on another's behalf. (*Union Pac. Corp.*, *supra*, 79 Cal.App.4th at 1448.) The HOA did not pay a joint obligation, it performed repairs to a roadway it is contractually obligated to maintain under CC&Rs sections 3.1 and 3.10(a).

In reply, Defendant grounds its indemnity claim in CC&Rs section 11.7(5), which it contends requires each owner to repair and indemnify the other owners for damage caused by that owner's intentional or negligent acts. (Reply at 9:26-28.) However, as noted *ante*, in the breach of governing documents section, CC&Rs section 11.7(5) uses the term "Owners" in more than one sense within this same provision and it is not clear, in the context of the other provisions of the CC&Rs and By-Laws, whether the indemnity obligation runs from the individual owner to the HOA, among individual owners collectively as the HOA, or both. That ambiguity is itself a triable issue of fact going to the scope of the alleged contractual obligation. Whether the cleanup costs were the HOA's own primary obligation rather than a joint obligation shared with the Frohnens presents a further triable issue for the reasons discussed *ante*. Fault on the part of the Frohnens has not been established as a matter of law for the reasons discussed in the Cross-Complaint negligence section.

Accordingly, the motion for summary adjudication of the cause of action for equitable indemnity is **DENIED**.

V. <u>Declaratory and Injunctive Relief</u>

To qualify for declaratory relief a plaintiff must make a showing of two elements: "(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party." (*Brownfield*, *supra*, 208 Cal.App.3d at 410.) A claim for declaratory relief fails when it is “””wholly derivative” of other failed claims.’” (*Smyth*, *supra*, 31 Cal.App.5th at 191-192 quoting *Ball*, *supra*, 164 Cal.App.4th at 800.)

The HOA's declaratory and injunctive relief claims are derivative of its negligence, breach of contract, and nuisance claims. Because summary adjudication of those claims is improper for the reasons discussed above, summary adjudication is likewise improper for the HOA's declaratory and injunctive relief claims.

Accordingly, the motion for summary adjudication of the causes of action for declaratory and injunctive relief is **DENIED**.

VI. <u>Evidentiary Matters</u>

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code Civ. Proc., § 437c.)

Both parties have reproduced full evidentiary objections within their separate statement responses. California Rule of the Court 3.1354(b) explicitly requires that objections to evidence supporting or opposing a motion for summary judgment must be made in a separate document distinct from the separate statement, and prescribes a specific format for doing so: "[o]bjections to specific evidence must be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but *the objections must not be restated or reargued in the separate statement*." (Cal. Rules of Court, rule 3.1354(b).) Embedding full objections within the separate statement does not comply with that requirement. To the extent the embedded objections overlap with objections properly filed as separate documents and are material to the disposition of the motion, they are addressed below. To the extent they do not overlap and/or are not material, the Court declines to rule on them.

Defendant's Objection No.3 to the Blackburn Declaration: **OVERRULED**. The challenged testimony describes the physical components of the storm sewer system based on the declarant's personal inspection of the site. This is properly within the expertise of a licensed geotechnical engineer and does not constitute improper contract construction. (Evid. Code, § 720.)

Defendant's Objection No. 4 to the Blackburn Declaration: **OVERRULED**. The Court does not rely on the speculative portion of the challenged testimony regarding the Central Contra Costa Sanitary District. The remainder of the paragraph – that the absence of a defined channel in the flat area caused stormwater to spread, saturate the slope, and trigger the landslide – is a geotechnical causation opinion within the declarant's expertise and is not speculative. (Evid. Code, §§ 720, 803.)

All remaining objections are not material to the Court's disposition and are not ruled upon.

VII. Conclusion

For the foregoing reasons, Defendant's motion for summary judgment or, in the alternative summary adjudication, is **DENIED**.

5. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING ON SUMMARY MOTION
FILED BY: HAMMOND, DAVID
TENTATIVE RULING:

On the Court's own motion, the hearing is continued to 9:00 a.m. on June 10, 2026. No further briefing will be required. No appearance is required on May 20, 2026.

6. 9:00 AM CASE NUMBER: C23-03200
CASE NAME: BRANDI SANFORD VS. PACIFIC STATES PETROLEUM, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION**
FILED BY: SANFORD, BRANDI
TENTATIVE RULING:
Summary

Plaintiff Brandi Sanford moves for preliminary approval of the proposed class action settlement with defendant ARB, Inc. The motion is **granted** as set forth below. No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on December 18, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, failure to provide meal periods, failure to authorize rest periods, among others. On December 21, 2023, Plaintiff sent a notice to Defendant and the California Labor & Workforce Development Agency ("LWDA") alleging similar wage and hour violations pursuant to PAGA. The Parties filed a stipulation for Plaintiff to be granted leave to amend to file a First Amended Class & Representative Action Complaint adding a claim for civil penalties under the PAGA on November 14, 2025.

The settlement would create a gross settlement fund of $275,000 The class representative payment to the plaintiff would be $10,000. Attorney's fees would be $91,666.66 (one-third of the settlement). Litigation costs are estimated not to exceed $20,000. The PAGA allocation is $10,000, with $7,500 being paid to the LWDA and $2,500 being paid to the aggrieved employees. The settlement administrator's, Apex Class Action LLC, costs will not exceed $10,000. The fund is non-reversionary. Based on the class size, the average payment to each class member would be about $440.47.

The entire settlement amount will be deposited with the settlement administrator. The proposed settlement would certify a class of all current and former hourly employees who worked on for Defendant between December 18, 2019 through August 17, 2024 The class has about 300 members.

The settlement contains release language covering "all claims arising during the Class Period under state, federal, or local law, arising out of the claims pleaded in the Complaint on file in the action[…] claims based on alleged violations of these Labor Code and Wage Order provisions) and all other claims, such as those under the California Labor Code, Wage Orders, regulations, and/or other provisions of law, that could have been pleaded based on the facts asserted in the Action, including, but not limited to: (1) failure to timely pay employees upon separation or discharge; (2) failure to pay all wages due and owing for time worked; (3) all related violations of the applicable Wage Orders; (4) all related violations of California's unfair competition law; and (5) interest, fees, and costs[…]." Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible."] *Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, it is important that the "Released Claims" includes only claims that could have been pleaded "based on the facts asserted in the Action."

Informal discovery was undertaken. The Parties exchanged information before mediating this matter with Hon. Amy Hogue (Ret.). The matter was settled after a mediation sessions with a mediator. Further details of the settlement agreement are included in the exhibits provided to the Court, which were reviewed by the Court..

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of $10,000 for the plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Motion is **granted**.
2. The Court finds that settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval.
3. Counsel are directed to prepare a proposed order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date.
4. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
5. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
6. No appearance is required on May 20, 2026.

7. 9:00 AM CASE NUMBER: C23-03215
CASE NAME: MICHAEL PETERSEN VS. GOLD BOND BUILDING PRODUCTS, LLC.
***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**
FILED BY:
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiff Michael Petersen ("Plaintiff") individually and on behalf of others similarly situated, moves for final approval of her class action and PAGA settlement ("Motion") with Defendant Gold Bond Building Products, LLC ("Defendant"). This Motion is **<u>granted</u>** as set forth herein. No appearance is required at the hearing on May 20, 2026.

<u>Background and Settlement Terms</u>

The original complaint was filed on December 19, 2023, raising class action claims on behalf of 254 non-exempt employees, alleging that Defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. Plaintiff also represents a group of PAGA Members on behalf of the State of California as private attorney general pursuant to the California Labor Code Private Attorneys General Act of 2004 ("PAGA"). (Lab. Code, §§ 2698–2699.5.) The PAGA Members include any non-exempt hourly employee who works or worked for Defendant in California at any time from December 19, 2022, to January 28, 2026.

On or about January 28, 2026, the Court granted preliminary approval of the Settlement Agreement. Pursuant to that order, on March 11, 2026, Phoenix Settlement Administrators (the "Settlement Administrator" or "Phoenix") mailed the Court-approved Notice of Proposed Class Action Settlement (the "Class Notice") to all 254 Class Members.

Now, Plaintiff requests that this Court to grant final approval of the Settlement Agreement, and enter the Proposed Order and Final Judgment filed concurrently herewith:

1. Finally certifying the Settlement Class, as defined in the Settlement Agreement and the Court's Order Granting Preliminary Approval of the Class Action Settlement;

2. Finally appointing Plaintiff Michael Petersen as the Class Representative for purposes of settlement;

3. Finally appointing Joshua Falakassa of Falakassa Law, P.C. and Mehrdad Bokhour of Bokhour Law Group, P.C. as Class Counsel for purposes of settlement;

4. Finding that the Class Notice was properly provided to the Settlement Class in accordance with the Court's Order Granting Preliminary Approval of Class Action Settlement;

5. Finally approving the Settlement as fair, adequate, and reasonable, based upon the terms

set forth in the Settlement Agreement;

6. Binding Participating Class Members to the terms of the Settlement Agreement, including the Release specified therein; and

7. Retaining jurisdiction to enforce the Settlement Agreement.

The settlement would create a gross settlement fund of $574,500. The class representative payment to plaintiff would be $10,000. Attorney's fees would be $191,500 (one-third of the settlement). Litigation costs would not exceed $18,729.10. The settlement administrator's costs would not exceed $8,000. PAGA payments will be made to LWDA in the amount of $7,500 and $2,500 to PAGA members. The net amount paid directly to the class members would be about $336,270.90. The fund is non-reversionary. Based on the estimated class size of 254 people, the average net payment for each class member is approximately $1,318.71.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendants during the class period.

The settlement contains release language covering "all claims and causes of action alleged in the Class Action Complaint; and (ii) any and all additional claims that reasonably could have been alleged based on the facts stated in the Operative Complaints[.]" (Settlement, Par. 5.2) Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken. The matter settled after arms-length negotiations. Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. Counsel attest that notice of the proposed settlement was transmitted to the LWDA.

B. **Legal Standards**

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.*

(2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. **Attorney fees**

Plaintiff seeks one-third of the total settlement amount as fees ($191,500), relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.)

At the Court's direction, counsel have prepared a lodestar fee estimate, estimating $114,862.60, based on 155.5 hours, at a blended rate of $737.50 per hour. This results in an imputed multiplier of 1.66. This imputed multiplier is relatively high for this type of case, in this Court's experience. In addition, however, the average individual payment is relatively high.

Litigation costs of $18,729.10are reasonable and are approved. Settlement administration costs in the amount of $8,000 are reasonable and are approved.

The requested representative payment of $10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff committed a significant number of hours to assist with the investigation, litigation, and settlement processes of this case to assist on the matter. Plaintiff also spent considerable time helping prepare for and aid in the mediation and settlement process. He accepted undefined "risk" by doing so. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate, including the attorney's fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The Court will sign a Proposed Order lodge with the Court on May 4, 2026 provided the terms are consistent with this ruling, and will set a compliance hearing date.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16 and will be set by the Clerk of the Court.
6. Provided Counsel prepares a compliance statement that conforms to the foregoing, the Court may vacate the compliance hearing via minute order.
7. No appearance is required at the hearing on May 20, 2026.

8. 9:00 AM CASE NUMBER: C24-00866
CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.
***HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**
FILED BY:
****TENTATIVE RULING:****
Summary

Receive Kevin Singer's Motion to Approve and Settle the Receiver's Final Report filed on December 18, 2025 is **granted** as set forth herein.

Background

This Motion was continued from April 22, 2026 after the Court received and reviewed (1) Objections from Intervenor Patti O'Brien to the Receiver's Final Accounting Report, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court ordered no further briefings, but requested the Receiver to file replies to both filings. The Court reviewed the replies prepared by the Receiver. The Court's findings are addressed in the ruling below.

The Court received an untimely opposition from Non-Party AX9 Security, to which the Receiver lodged an objection. The objection is **sustained**. Non-Party AX9's objection is untimely. Moreover, even if untimely, AX9 is a former vendor who may have been owed a substantial balance from the pre-receivership period. No funds remain to pay AX9, whose claim is junior to the Receiver's fees and expenses, and to the two Receiver's Certificate Holders. The Court does not consider AX9's opposition.

After considering the replies, the original Motion, the opposition papers and objections, the Court finds good cause to make the following rulings and orders.

Ruling

A. The Court finds that the objections made by Intervenor Patti O'Brien are an attempt to relitigate the propriety of the Receivership appointment, and as such, the objections are **overruled**.

B. The Court finds that the Opposition by Creditor and Lien Claimant Global Asset Lien and Foreclosure LLC ("Global") are not supported by compelling legal authority for the proposition that its claim was not precluded and that it is entitled to an evidentiary hearing on the amount and priority of administration expenses. The Court finds Global agreed to lend funds in a subordinate position to the Receivership Estate's costs of administration. The record before the Court demonstrates that Global's certificate is junior to the Receiver's fees and expenses. Accordingly, any objections raised by Global are overruled and its request for relief are **denied**.

C. The Receiver's Motion is **granted**. The Court will execute the proposed order lodged on December 18, 2025.

9. 9:00 AM CASE NUMBER: C24-01900
CASE NAME: NORRELL MACK VS. G LOGISTICS LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: MACK, NORRELL
****TENTATIVE RULING:****
Summary

Plaintiff Norrell Mack individually and on behalf of those similarly situated ("Plaintiff") moves for preliminary approval of their proposed class action settlement with Defendant G Logistics LLC ("Defendant") The motion is **granted.** No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on July 19, 2024 and amended on August 5, 2025, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, provide meal and rest breaks, provide accurate wage statements, expense reimbursement, among others, to delivery drivers working for Defendant. The Parties entered into a settlement agreement and now moves the Court to approve the settlement agreement and to enter the following orders:

1. preliminarily certifying the class for purposes of settlement only.
2. Preliminarily appointing Plaintiff as Class Representative for purposes of settlement only; .
3. Preliminarily appointing Kevin Lipeles, Esq., Thomas Schelly, Esq., and Jasmine Badawi, Esq. of Lipeles Law Group, APC, as Class Counsel for purposes of settlement only;
4. Preliminarily approving the settlement as fair, adequate, and reasonable, based upon the terms set forth in the parties' Class Action and PAGA Settlement Agreement and Class Notice

("Settlement Agreement"), including payment by G Logistics LLC, ("Defendant") of the Gross Settlement Amount of $200,000.00;

5. Preliminarily approving a Class Representative Service Payment of $10,000 to Plaintiff in recognition of his service to the Settlement Class;
6. Preliminarily approving Plaintiff's Counsel's request for up to $70,000.00 (35%) of the Gross Settlement Amount as attorneys' fees;
7. Preliminarily approving Plaintiff's Counsel's request for actual costs from the Gross Settlement Amount in an amount up to $13,500.00;
8. Appointing Phoenix Class Action Administration Solutions ("Phoenix") as the third-party Settlement Administrator for mailing notices and for claims administration, approving that a maximum of $11,500.00 be deducted from the Gross Settlement Amount for the costs of administration, and approving that the fees and costs of the Settlement Administrator will be paid from the Gross Settlement Amount; and
9. Approving the proposed Class Notice and ordering it be disseminated to the Class as provided in the Settlement Agreement.

After the above costs and fees are deducted, the net settlement amount is $82,000. Based on the class size, the average payment to each class member would be about $110.22. The PAGA penalties are $20,000. This includes a payment to the LWDA is $13,000 and $7,000 to the aggrieved employees as their individual PAGA payments.

The proposed settlement would certify a class of all current and former hourly employees. The class has about 744 potential members, who worked 21,134 workweeks and 455 aggrieved employees who worked a total of 6,513 PAGA pay periods. The matter was settled after an all-day mediation session with a mediator.

The settlement contains release language covering "all claims arising during the Class Period under state, federal, or local law, arising out of the claims pleaded in the Complaint on file in the action[…] claims based on alleged violations of these Labor Code and Wage Order provisions) and all other claims, such as those under the California Labor Code, Wage Orders, regulations, and/or other provisions of law, that could have been pleaded based on the facts asserted in the Action, including, but not limited to: (1) failure to timely pay employees upon separation or discharge; (2) failure to pay all wages due and owing for time worked; (3) all related violations of the applicable Wage Orders; (4) all related violations of California's unfair competition law; and (5) interest, fees, and costs[…]."

Under recent appellate authority, the limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible."] *Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Thus, it is important that the "Released Claims" includes only claims that could have been pleaded "based on the facts asserted in the Action."

<u>Analyses</u>

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks thirty-five percent of the total settlement amount as fees, relying on the "common fund" theory. This fee is higher than most claimed fees for similar actions, which are usually 33.3 percent of the total settlement. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of $10,000 for the representative plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. It is therefore, preliminarily **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.
3. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week

before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).

4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement.
5. No appearance is required at the May 20, 2026 hearing.

10. 9:00 AM CASE NUMBER: C25-00824
CASE NAME: SANDSTONE GROUP, LLC VS. RANDALL MILLER
***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**
FILED BY: SANDSTONE GROUP, LLC
****TENTATIVE RULING:****

Sandstone's Motion for Leave to File Second Amended Complaint is **granted**.

Sandstone shall file and serve its Second Amended Complaint within 15 days of this ruling, and Defendants shall file their responsive pleadings within the time prescribed by law.

Background

This is an action for breach of a commercial loan guaranty and related claims for fraudulent transfer, fraudulent concealment, and conspiracy. Plaintiff Sandstone Group, LLC ("Sandstone") is the creditor on the underlying loan obligation. The originally named defendants were RAD Urban, Inc. ("RAD Urban") and Randall Miller, who personally guaranteed RAD Urban's obligation to Sandstone.

Sandstone alleges that RAD Urban issued a note that became due on March 31, 2020, and that Randall Miller personally guaranteed that obligation. Sandstone alleges that, rather than satisfy the guaranty when the obligation matured, Mr. Miller and others engaged in a coordinated series of transactions to place his assets beyond the reach of creditors.

The transfers in this case begin with a residential property at 63 Moraga Via in Orinda, California. Sandstone alleges that in May 2020 the Millers created the 63 Holdings Trust, naming Robert Miller as trustee, and transferred 63 Moraga Via into that trust. In April 2021, the trust conveyed the property to third parties. Sandstone alleges (or proposes to allege) that the sale proceeds were used in June 2021 to purchase an Orinda lot, which was subsequently subdivided. One half of the lot was sold, with proceeds allegedly deposited into a bank account belonging to 63 Realty Holdings, LLC; the other half (8 Patrick Lane) is alleged to be the site of the Millers' current residence. Sandstone further contends that the Millers established a spendthrift trust in Nevada (the RA Miller Capital Holdings Trust) to hold additional assets while the Millers retained control over them. Sandstone further contends that the Millers have been receiving funds from R2 Building ("R2 Building"), which shares a principal place of business and key personnel with the now-defunct RAD Urban.

Sandstone's original complaint filed on March 24, 2025 named Randall Miller and RAD Urban as defendants, as well as Doe defendants on the fraudulent transfer claims. On April 18, 2025, Sandstone filed the FAC adding Randall Miller's brother, Robert Miller (individually and in his capacity as trustee of the 63 Holdings Trust), as well as 63 Realty Holdings, LLC ("63 Realty"), an entity purportedly controlled by Randall Miller.

Defendants answered the FAC on various dates between June and August of 2025. Sandstone has propounded written discovery on defendants (Robert Miller is apparently the only party to have responded), and issued subpoenas to financial institutions and to Alexis Miller, but document production has been limited. The parties participated in an unsuccessful mediation on October 8, 2025, and continued settlement discussions after that.

On January 15, 2026, the Court held a case management conference, and it set a trial setting conference for April 23, 2026. Following the CMC, counsel for Defendants stated that they would not stipulate to an amended complaint. Accordingly, on January 23, 2026 Sandstone filed the instant motion for leave to file a second amended complaint. The proposed second amended complaint ("SAC") would add as defendants Randall Miller's spouse, Alexis Miller, and R2 Building, which Sandstone contends is a continuation, successor-in-interest, and/or alter ego of RAD Urban.

The operative FAC asserts five causes of action: (1) breach of guaranty; (2) fraudulent transfer under the Uniform Voidable Transactions Act (UVTA); (3) common law fraudulent transfer; (4) conspiracy to commit fraudulent transfers; and (5) fraudulent concealment. The proposed SAC would add Alexis Miller as a defendant on the two fraudulent transfer claims and the conspiracy claim, and would add R2 Building as a defendant on the breach of guaranty claim, both fraudulent transfer claims, and the fraudulent concealment claim. Sandstone also seeks to add RAD Urban to the fraudulent transfer claims.

RAD Urban, Robert Miller, and 63 Realty oppose the motion. Defendants do not oppose the addition of R2 Building as a party. Instead, the opposition is limited to the addition of Alexis Miller, on grounds of undue delay, prejudice, and the bar of the statute of limitations.

Defendants represent that on March 23, 2026, Sandstone, standing in the shoes of the bankruptcy trustee, obtained a $24,470,546.27 judgment against Mr. Miller (*Sandstone Group, LLC v. Randall Miller, et al.*, Bankr. N.D. Cal. Case No. 25-03003 (HLB)), and that on April 3, 2026, Mr. Miller filed for bankruptcy protection (*In re Miller*, Bankr. N.D. Cal. Case No. 26-40598).

Legal Standard

Code of Civil Procedure section 473, subdivision (a) provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); see also, Code Civ. Proc., § 576.)

The court has broad discretion to permit amendments to pleadings, and "the court's discretion will usually be exercised liberally to permit amendment of the pleadings." (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (*Ibid*.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend. .. ." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.)

California Rules of Court, Rule 3.1324, subdivision (a) provides, "[a] motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, Rule 3.1324, subd. (a).)

Further, California Rules of Court, Rule 3.1324, subdivision (b) provides, "[a] separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, Rule 3.1324, subd. (a).)

Motion for Leave to Amend

The proposed SAC would add two new defendants to the case, Alexis Miller and R2 Building, and would expand the claims against RAD Urban.

As to Alexis Miller, Sandstone seeks to add her as a defendant to its existing claims for fraudulent transfer under the UVTA, common-law fraudulent transfer, and conspiracy to commit fraudulent transfers. Sandstone claims that discovery in this case has revealed Ms. Miller's role in the transactions at issue, including her interest in the 63 Holdings Trust, her position as a member and manager of 63 Realty, and her role as co-grantor and co-investment trustee of the Nevada spendthrift trust that Sandstone alleges was used to hold the Millers' assets.

As to R2 Building, Sandstone seeks to add it as a defendant to its claims for breach of guaranty, fraudulent transfer under the UVTA, common-law fraudulent transfer, and fraudulent concealment. Sandstone alleges that R2 Building is a continuation, successor-in-interest, and/or alter ego of RAD Urban, sharing the same principal place of business as RAD Urban and at least four key personnel.

Sandstone also seeks to add RAD Urban to the two fraudulent transfer causes of action, based on what Sandstone characterizes as newly discovered evidence of RAD Urban's role in funneling funds through R2 Building, and to revise certain other allegations. No substantive deletions are proposed.

Defendants do not raise any procedural defects in the Motion and Defendants also do not oppose the addition of R2 Building. As to Alexis Miller, Defendants argue that Sandstone delayed too long in seeking to add her, that the amendment will prejudice defendants by requiring additional discovery and by depriving them of the opportunity to have included Ms. Miller in the October 2025 mediation. Defendants additionally argue that claims against Ms. Miller are barred by the UVTA statute of limitations.

Delay

Defendants first argue that Sandstone delayed unreasonably to name Alexis Miller. They argue that Sandstone knew or should have known of Ms. Miller's involvement from the outset of the case, and point to a July 30, 2025 meet-and-confer letter in which Sandstone's counsel acknowledged that Ms. Miller, along with her husband, jointly transferred 63 Moraga Via to the 63 Holdings Trust. Despite this knowledge, Sandstone waited months to seek leave to amend, and did so only after Mr. Miller would not settle the case on Sandstone’s terms.

The Court is not persuaded. Although Sandstone may have suspected from the start of the case that Ms. Miller had some involvement in or knowledge of the challenged transactions as Randall Miller’s spouse, suspicion is not the same as knowledge of facts giving rise to a claim. According to Sandstone, it was through documents produced in July 2025 that it first learned that Ms. Miller was co-trustor of the 63 Holdings Trust with an ownership interest, and it was through third-party discovery received in October 2025 that Sandstone learned about Ms. Miller's role as co-grantor and co-investment trustee of the trust in Nevada. Sandstone raised the possibility of amendment with Defendants shortly after the unsuccessful mediation in October 2025, continued to discuss the issue with Defendants over the following months, and filed this Motion on January 23, 2026, within roughly two weeks of their counsel confirming that Defendants would not stipulate to amendment.

That timeline does not reflect the kind of unreasonable delay that justifies denying leave to amend. The cases Defendants rely on involve far more egregious circumstances. In *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, for example, the plaintiffs waited more than five years to raise their proposed amendment, did so for the first time during a summary judgment hearing, and provided no excuse for the delay. (*Id*. at p. 176.) Nothing comparable has happened here. Sandstone filed this motion less than a year after filing the original complaint, and within months of learning facts that, in its view, supported the new claims.

Prejudice

Defendants argue they will suffer prejudice if the motion is granted. Prejudice sufficient to defeat amendment generally requires a showing of "delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank, Ltd., New York Branch* (1999) 68 Cal.App.4th 1435, 1448.) For example, in *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, leave to amend was properly denied where a trial date had been set, the jury was about to be impaneled, counsel, the parties, the trial court, and witnesses had already set aside time for trial, and a continuance would have been required to depose new witnesses, because adding the new cause of action “would have changed the tenor and complexity from its original focus.” (Id. at 486-487.)

None of those factors is present. There is no trial date or discovery cutoff. The parties have engaged in written discovery only. In that posture, the amendment will not require any work to be redone, and Defendants will have sufficient opportunity to conduct discovery directed to the new claims, to the extent that they need it. Moreover, the prospect of additional discovery, standing alone, does not constitute the kind of prejudice that should defeat amendment.

Defendants also argue that they are prejudiced because they engaged in considerable time and expense preparing for and attending the October 2025 mediation, which did not include Ms. Miller because she was not then a party. Defendants identify no authority for the proposition that prior participation in an unsuccessful mediation should bar the addition of new parties and the Court does not see how this constitutes cognizable prejudice. Defendants' argument is also undercut by their non-opposition to the addition of R2 Building as a party. If adding one new party at this stage is tolerable, the addition of a second party should not change the analysis.

Statute of Limitations

Defendants' remaining argument is that Sandstone's proposed causes of action against Ms. Miller are time-barred by the four year statute of limitations in Civil Code section 3439.09, because both the underlying obligation (March 31, 2020) and the principal transfers at issue (the May 2020 creation of the 63 Holdings Trust and the April 2021 transfer of 63 Moraga Via) fall outside the four-year window. Defendants further argue that Sandstone cannot invoke relation-back under Code of Civil Procedure section 474, because it knew of Ms. Miller's identity and involvement at the time the original complaint was filed.

Sandstone responds that its claims encompass a broader range of transactions extending through 2024, including transactions involving the Nevada spendthrift trust and 63 Realty Holdings, LLC, that fall within the limitations period. Sandstone also invokes the UVTA's one-year discovery rule, and the discovery rule applicable to common-law fraud claims, arguing that the limitations period for any earlier transactions did not begin to run until Sandstone discovered Ms. Miller's involvement in 2025. Sandstone also argues that, under *Marasco v. Wadsworth* (1978) 21 Cal.3d 82, section 474's ignorance requirement is satisfied where the plaintiff lacked knowledge of the proposed defendant's culpability, not merely the defendant's identity, at the time the original complaint was filed.

In ruling on a motion for leave to amend the complaint, the court generally does not consider the merits of the proposed amendment, because "the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Here, the Court declines to consider the parties' timeliness arguments in ruling on the proposed amendment. If Defendants believe the proposed claims against Ms. Miller are legally deficient, they may raise that challenge by demurrer or other appropriate motion once the SAC has been filed.

Conclusion

The motion is **granted**. Within 15 days of the date of this ruling, Sandstone shall submit a proposed order and file and serve the SAC.

11. 9:00 AM CASE NUMBER: C25-01575
CASE NAME: DONNA PREVOST VS. CMG MORTGAGE, INC.
***HEARING ON MOTION IN RE: RECONSIDERATION OF DENIAL OF CMG MORTGAGE, INC.'S MOTION TO COMPEL ARBITRATION AND STAY PROCEEDINGS**
FILED BY: CMG MORTGAGE, INC.
TENTATIVE RULING:

Defendant CMG Mortgage, Inc.’s motion to reconsider the Court’s denial of its motion to compel arbitration is **denied.**

This is an employment case where Plaintiff alleges that she was harassed and discriminated against due to her race, age and gender. Defendant filed a motion to compel arbitration, arguing that Plaintiff agreed to arbitration in 2019 and 2021.

The Court denied Defendant’s motion to compel arbitration on November 19, 2025, finding that the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA) applied. Defendant brings this motion for reconsideration under Code of Civil Procedure section 1008. Defendants argue that there is new law based upon *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, published on December 16, 2025.

Motions for reconsideration are governed by California Code of Civil Procedure Section 1008. This section allows a party to bring a motion for reconsideration of a prior ruling or order where there are “new or different facts, circumstances, or law”. (Code of Civil Procedure section 1008(a).) Any such motion must include “what new or different facts, circumstances, or law are claimed to be shown.” (Code of Civil Procedure section 1008(b).) The trial court has discretion in determining what constitutes new law. (*Westmoreland v. Kindercare Education LLC* (2023) 90 Cal.App.5th 967, 976.)

In *Phillips v. Sprint PCS* (2012) 209 Cal.App.4th 758 the court affirmed a trial court’s decision to reconsider an order denying arbitration under sections 1008(b) and (c). The court of appeal explained that the trial court acted properly in reconsidering the issue because of the significance of the new opinion, which resulted in a change in law. In *Phillips*, the trial court had denied arbitration based upon *Discover Bank v. Superior Court* (2005) 36 Cal.4th 148, 153, which held that class action waivers were unconscionable. The United States Supreme Court then held that the *Discover Bank* rule was preempted by the FAA in *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 348. The Court of Appeal in *Phillips* agreed with the trial court that *Concepcion* was a major change in California law. (*Id.* at 769.)

Here, Defendant argues that *Quilala* created new law in California to address the extent to which the trial court should review the allegations supporting a sexual harassment claim when determining whether the EFAA applies. Defendant argues that *Quilala* applied a federal pleading standard when determining if the plaintiff alleged a sexual harassment claim.

Quilala summarized the EFAA as creating a “targeted exception to that policy where allegations of sexual harassment or sexual assault are at issue, reflecting Congress’s determination that such claims warrant resolution through the public court system rather than through private arbitration." (*Quilala, supra,* 117 Cal.App.5th at 83.) *Quilala* discussed the standard for bringing a sexual harassment claim under California law, not federal law. (*Quilala, supra,* 117 Cal.App.5th at 85-86.) *Quilala* also made it clear that the trial court correctly applied *current standards* when reviewing the allegations to determine if the plaintiff stated a plausible claim for sexual harassment, which indicates that the court was not intending to change the law. (*Id*. at 86- 87.)

Here, as in *Quilala*, the Court looked to the allegations in the complaint to determine whether Plaintiff had alleged a claim for sexual harassment under California law. The main difference between this case and *Quilala* is that here it was a close call as to whether Plaintiff had sufficiently alleged a claim for sexual harassment and in *Quilala* there were much stronger factual allegations to support a claim. (*Quilala, supra,* 117 Cal.App.5th at 86.) But the fact that *Quilala* was a stronger case for sexual harassment is not a change in the law. Nothing in *Quilala* suggested that all plaintiffs must bring allegations similar to the level alleged in *Quilala.*

The Court finds that *Quilala* did not constitute new law regarding what allegations are sufficient to state a claim for sexual harassment when determining whether the EFAA applies. Therefore, the motion for reconsideration is **denied**.

Defendant's requests for judicial notice of the Court of Appeal opinion in *Quilala, supra,* 117 Cal.App.5th 75 is granted (although unnecessary as it is a published opinion). Defendant's request for judicial notice of the complaint filed in San Francisco Superior Court in *Quilala* is denied. The Court of Appeal in *Quilala* sufficiently described the allegations at issue and there is no need for this Court to review the full complaint in *Quilala*.

12. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
***HEARING ON MOTION IN RE: FOR OSC RE SALE OF REAL PROPERTY**
FILED BY:
****TENTATIVE RULING:****
Pursuant to the Stipulation and Order filed on May 15, 2026, this hearing is continued to August 5, 2026 at 9:00 a.m. in this Department. No appearance is required on May 20, 2026.

13. 9:00 AM CASE NUMBER: C25-03593
CASE NAME: HALIM WINATA VS. KFORCE FLEXIBLE SOLUTIONS, LLC
***HEARING ON MOTION IN RE: TO STAY THIS ACTION PENDING THE RESOLUTION OF ARBITRATION**
FILED BY: THE CAPITAL GROUP COMPANIES, INC.
****TENTATIVE RULING:****
Defendant The Capital Group Companies Inc.'s ("Capital Group") Motion for Stay Pending Resolution of Arbitration, filed on January 26, 2026 is unopposed. Accordingly, the Motion is **granted**. This matter is stayed pending resolution of Capital Group's Motion to Compel Arbitration. The Court will execute the Proposed Order lodged on January 26, 2026. No appearance is required on May 20, 2026.

14. 9:00 AM CASE NUMBER: C25-03661
CASE NAME: KELLEN KIRK VS. TESLA, INC.,
***MOTION/PETITION TO COMPEL ARBITRATION COMPEL BINDING ARBITRATION**
FILED BY: TESLA, INC.,
****TENTATIVE RULING:****

Before the Court is Defendant Tesla, Inc.'s Motion to Compel Binding Arbitration.

For the following reasons, Defendant's Motion is **granted**.

Factual and Procedural Background

Plaintiff filed his complaint on December 12, 2025, alleging various Song-Beverly Act violations related to a Tesla vehicle he purchased from Defendant on July 28, 2024. It is undisputed that the Motor Vehicle Order Agreement ("Order Agreement") executed by Plaintiff includes an Arbitration Agreement.

On January 27, 2026, Tesla filed the instant motion to compel arbitration in accordance with the terms of the Arbitration Agreement.

Analysis

Defendant contends that the Federal Arbitration Act and the California Arbitration Act both require the enforcement of the Arbitration Agreement at issue.

"The FAA applies to contracts that involve interstate commerce (9 U.S.C. §§ 1, 2), but since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement." (*Davis v. Shiekh Shoes, LLC* (2022) 84 Cal.App.5th 956, 963.) Here, the Arbitration Agreement does not state that the FAA applies. There is also no evidence that shows that the contract at issue involves "interstate commerce." Defendant argues that automotive sales contracts "necessarily involve interstate commerce, because even when used intra-state, 'cars are themselves instrumentalities of interstate commerce.'" (*United States v. Oliver* (9th Cir. 1995) 60 F.3d 547, 550.) *Oliver*, however, does not involve an arbitration agreement nor does it state that the sale of a car 'necessarily involve interstate commerce.' Nor is there a discussion as to whether a car made, sold, and used in a single state 'necessarily involves interstate commerce.' Even if it did, there is no evidence in this case discussing any of the underlying facts.

As such, neither party has shown that the FAA applies to the Arbitration Agreement at issue. Accordingly, the Court will proceed with its analysis under the California Arbitration Act.

Procedure and Burden of Proof on Motion to Compel Arbitration

Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 ("Rosenthal").) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove a defense to the enforcement of the agreement. (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Id.*)

Existence of Arbitration Agreement

The threshold issue of whether a valid and enforceable arbitration agreement exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 ("*Rosenthal*").) In moving for arbitration, the "party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development* ("*Pinnacle*") (2012) 55 Cal.4th 223, 236.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) The Court as the trier of fact weighs the evidence in reaching a final determination regarding the validity and enforceability of the arbitration agreement. (*Id.*)

Defendant produced a copy of the Order Agreement which contains the Arbitration Agreement. (Kim Decl. Ex. 1.) They also explained how Plaintiff electronically executed and agreed to the terms of the Order Agreement – and Arbitration Agreement contained therein. (Kim Decl., ¶ 2-8.)

Plaintiff does not dispute that he signed the electronically executed the Order Agreement. In fact, Plaintiff's attorney declaration in opposition attached a copy of the Order Agreement and confirms it was "executed on July 14, 2024." (Sanders Decl. ¶ 5.)

Based on the above, Defendant has met its initial burden. (See e.g., *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-19.) Thus, the burden shifts to Plaintiff to prove a defense. (*Pinnacle*, 55 Cal.4th at 236.)

Unconscionability

While Plaintiff does not contest the existence of the Arbitration Agreement (contained in the Order Agreement), he does argue that it is unenforceable because it is unconscionable.

The "unconscionability doctrine 'has both a procedural and a substantive element.'" (*OTO, L.L.C.*, supra, 8 Cal.5th at 125.) "The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.'" (*Ibid.* quoting *Pinnacle, supra*, 55 Cal.4th at 246.)

"Both procedural and substantive unconscionability must be shown for the defense to be established, but 'they need not be present in the same degree.'" (*OTO, L.L.C.* 8 Cal.5th at 125.) "Instead, they are evaluated on a 'sliding scale.'" (*Ibid.*) "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to 'conclude that the term is unenforceable.'" (*Ibid.*) "Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required." (*Ibid.*)

"The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.) Here, Plaintiff argues that the Arbitration

Agreement is both procedurally and substantively unconscionable.

<u>Procedural Unconscionability</u>

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra,* 8 Cal.5th at 126.) "Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice." (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, "involves the extent to which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them." (*Ibid.*) Plaintiff contends that both oppression and surprise are present.

A procedural unconscionability analysis 'begins with an inquiry into whether the contract is one of adhesion.'" (*OTO, L.L.C.*, supra, 8 Cal.5th at 126 quoting *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) "An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power 'on a take-it-or-leave-it basis.'" (*Ibid.* quoting *Baltazar v. Forever 21, Inc.* 2016) 62 Cal.4th 1237, 1245.) When presented with a such a situation, the "pertinent question … is whether circumstances of the contract's formation created such oppression or surprise that closer scrutiny of its overall fairness is required." (*Ibid.*)

Plaintiff argues:

> "Here, the purchase agreement was a pre-printed consumer purchase agreement presented to Plaintiff as a 'take it or leave it' agreement (i.e., an adhesion contract). Plaintiff had no meaningful opportunity to negotiate with Tesla regarding any of the terms, except to reject arbitration of the described purchase-related claims. If Plaintiff wanted the subject vehicle, Plaintiff had to accept the Motor Vehicle Order Agreement as a whole." (Opp. at 5:12-16.)

Plaintiff, however, presents no evidence to support this argument. Plaintiff fails to provide any declaration supporting his claim indicating how the Order Agreement was presented to him, how long he had to review it, or whether he even attempted to negotiate the inclusion of the Arbitration Agreement.

"Matters set forth in points and authorities are not evidence." (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) "Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations." (*Ibid.*) Even if the allegations could be considered evidence, "the statements contained in the memorandum [of points and authorities] lack foundation and could not be used by the court to evaluate the consideration." (*Brehm Cmtys. v. Superior Court* (2001) 88 Cal.App.4th 730, 735; see also *In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515: "The allegations of a brief are not evidence and a brief is not a sworn document.")

Plaintiff also argues that "Tesla failed to provide Plaintiff with a copy of the relevant arbitration rules or even advise which rules would be chosen." (Opp. at 5:17-18.) He contends that the failure to provide a copy of the rules is procedurally unconscionable.

Initially, as noted above, Plaintiff fails to provide any evidence (such as a declaration) confirming that Tesla did not provide a copy of the relevant arbitration rules. While it may be true that failure to attach a copy of the arbitration rules could be a factor supporting a finding of procedural unconscionability, courts have found that “the failure to attach the AAA rules, standing alone, is insufficient grounds to support a finding of procedural unconscionability.” (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1472.) As one court explained: “The failure to attach a copy of arbitration rules could be a factor supporting a finding of procedural unconscionability where the failure would result in surprise to the party opposing arbitration.” (*Lane v. Francis Capital Management LLC* (2014) 224 Cal.App.4th 676, 690.)

As to the claim that Tesla did not “even advise which rules would be chosen,” that argument is belied by the terms of the Arbitration Agreement. It specifically states that the arbitration will be “administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules.”

Finally, the Arbitration Agreement also contains an opt-out provision which allowed Plaintiff to opt out of arbitration within 30 days of signing the Order Agreement. Plaintiff provides no evidence he availed himself of this option. An “arbitration agreement is not adhesive if there is an opportunity to opt out of it.” (*Mohamed v. Uber Techs., Inc.* (2016) 848 F.3d 1201, 1211.) An arbitration agreement that provides a party with the opportunity to opt out is not adhesive, as it provides a meaningful choice.

Based on the above, the Court finds that Plaintiff has failed to establish any procedural unconscionability.

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra,* 61 Cal.4th at 910-11, 913; *Armendariz, supra,* 24 Cal.4th at 117.) Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is “unfairly one-sided.” (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra,* 62 Cal.4th at 1248.) “The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement.” (*Sanchez, supra,* 61 Cal.4th at 911-12.)

“A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be ‘so one-sided as to “shock the conscience.” [Citation omitted.]” (*Pinnacle, supra,* 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Plaintiff appears to allege two terms of the Arbitration Agreement are substantively unconscionable: (1) the arbitrator selection process, and the (2) ‘arbitration-cost provisions.’

As to the arbitrator selection process, Plaintiff argues that Tesla ‘may ‘elect’ both to arbitrate in the first place, and choose the forum, and choose the rules’ which makes the agreement substantively unconscionable. Plaintiff cites to *Chavarria v. Ralphs* (9th Cir. 2013) 733 F.3d 916 as support, noting that the court there “held: ‘Even if it were the case that Ralphs' policy does not guarantee that Ralphs will always be the party with the final selection, the selection process is not one designed to produce a true neutral in any individual case.’” (*Id.* at 925.)

Chavarria is distinguishable. There, the section of the arbitration agreement that governed the procedure for selecting a single arbitrator:

> "provided that, unless the parties agree otherwise, the arbitrator must be a retired state or federal judge. It explicitly prohibits the use of an administrator from either the American Arbitration Association ('AAA') or the Judicial Arbitration and Mediation Service ('JAMS').
>
> If the parties do not agree on an arbitrator, the policy provides for the following procedure:
> (1) Each party proposes a list of three arbitrators;
> (2) The parties alternate striking one name from the other party's list of arbitrators until only one name remains;
> (3) The party 'who has not demanded arbitration' makes the first strike from the respective lists; and
> (4) The lone remaining arbitrator decides the claims." (*Id.* at 920.)

As the *Chavarria* court noted, under the above procedure the "arbitrator selected through this process will invariably be one of the three candidates nominated by the party that ***did not demand*** arbitration." (*Ibid.* emphasis added.) In other words, Ralphs would always be the party that selects the arbitrator. Likewise, in *Milliner v. Bock Evans Fin. Counsel, Ltd.* (2015) 114 F.Supp.3d 871, (also cited by Plaintiff) the arbitrator selection process called for the defendant to select the arbitrator.

This is nowhere near what the Tesla Arbitration Agreement provides. Here, the Arbitration Agreement indicates that the arbitration will be "administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules." Thus, the AAA rules will govern which of its arbitrators will hear the matter. Plaintiff has failed to provide any evidence or arguments to establish that the procedures the AAA uses to pick an arbitrator are unconscionable or one-sided.

Plaintiff next argues that the 'arbitration-cost provisions' are substantively unconscionable, without identifying what specific language in the Arbitration Agreement he takes issue with. It appears that the provision at issue is:

> To initiate the arbitration, you will pay the filing fee directly to AAA and we will pay all subsequent AAA fees for the arbitration, except you are responsible for your own attorney, expert, and other witness fees and costs unless otherwise provided by law. If you prevail on any claim, we will reimburse you your filing fee.

Plaintiff contends that this clause "discourages, or even prevents, buyers from seeking to enforce their legal rights, as buyers are potentially faced with bearing exorbitant arbitration costs and expenses they may have to reimburse to Tesla…." (Opp. at 7:13-15.) "Arbitration would impose prohibitive costs on Plaintiff, and, combined with the other substantive and procedurally unconscionable aspects, this renders the Arbitration Provision unenforceable." (*Id.* at 7:17-19.)

As Plaintiff's own authority makes clear, "given the Legislature's approach to the affordability of consumer arbitration" a provision in an arbitration agreement pertaining to costs "cannot be held unconscionable absent a showing that [arbitration] fees and costs in fact would be unaffordable or would have a substantial deterrent effect…." (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 920.)

Again, Plaintiff presents no evidence to indicate that the costs associated with initiating an arbitration are unusually high or that he cannot afford them. He also fails to explain why being required to pay the filing fee would prevent buyers from seeking to enforce legal rights. Plaintiff was required to pay a filing fee of $435 to file his complaint in this action. There is no evidence showing that the AAA filing fee is disproportionately greater or prohibitively high.

In addition, after the filing fee is paid by Plaintiff the Arbitration Agreement makes clear that Tesla "will pay all subsequent AAA fees for the arbitration," except for attorney, expert, and witness fees incurred by Plaintiff. This provision is actually more beneficial to Plaintiff as he would be required to pay his own filing fees for any motions (such as this one) while in court. It is also worth noting that if Plaintiff prevails in the arbitration, Tesla will reimburse his initial filing fee.

Stay of Proceedings

"If a court of competent jurisdiction, whether in this State or not, has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (Code Civ. Proc. § 1281.4.)

Based on the above, Defendant requests that this matter be stayed pending the resolution of the arbitration. Plaintiff does not dispute, or even address, the request to institute a stay of these proceedings if the Court grants the motion to compel arbitration. A stay is warranted.

Conclusion

Based on the above, Tesla's motion to compel arbitration is **granted**. The parties are ordered to submit this matter to arbitration before the AAA in accordance with the terms of the Arbitration Agreement. This matter is **stayed in full**, pending conclusion of the arbitration.

15. 9:00 AM CASE NUMBER: C26-00315
CASE NAME: GARY DARTEZ VS. REDWOOD PROPERTY INVESTORS III, LLC
***HEARING ON MOTION IN RE: MOTION TO COMPEL PRESERVATION OF EVIDENCE; LITIGATION HOLD; AND RELATED RELIEF**
FILED BY:
****TENTATIVE RULING:****
Summary

Plaintiff Gary Dartez ("Plaintiff") Motion to Compel Preservation of Evidence, etc. against Defendant Redwood Property Investors III LLC ("Defendant") is **denied** as set forth herein.

Background

In this case, Plaintiff Gary Dartez ("Plaintiff") alleges that Defendant Redwood Property Investors III LLC ("Defendant") the following causes of action relating to real property leased to him by Defendant located at 20 E. 16th St., Antioch, California ("Subject Property"): Equitable Full Accounting, Fraudulent Misrepresentation and Concealment, Conversion, Violation of Antioch's Municipal Ordinance regarding Rent Stabilization, Unfair Competition, Suppression of Evidence, and Common Counts. Defendant generally denies these allegations and has filed a Motion for Stay pending resolution of a related federal court action, which is calendared for October 14, 2026. Defendant also identified that Plaintiff has three pending cases before the Court:

1. Petition for Writ of Administrative Mandate, filed September 17, 2025 (Case No. N25-1849);
2. This action, filed on January 29, 2026 (Case No. C26-00315); and
3. An action filed in United States District Court, Northern District, California (Case No. 3:26-cv-01644-SK)

Plaintiff claims that he has paid $145,523 in rent and related charges for his tenancy at the Subject Property. He asserts that Defendant controlled the rent accounting system and records for his tenancy. These records are necessary to help him prove his case in chief against Defendant.

On January 19, 2026, Plaintiff filed a Motion to Compel Preservation of Evidence, Litigation Hold and Related Relief ("Motion"). The Motion was supported by a Memorandum of Points and Authorities and Declaration of Plaintiff in support thereof. Specifically, Plaintiff seeks the preservation of accounting documents and electronically stored information, and other orders to prevent spoliation of evidence. On May 7, 2026, Plaintiff filed a supplemental declaration, including 38 pages of exhibits in support his Motion.

On May 7, 2026, Defendant filed an opposition to the Motion asserting, essentially, that the Plaintiff does not provide valid legal authority to support the requested relief.

Analyses

Self-Represented Litigants Are held to the Same Standard of any Litigant before the Court

The Court is aware that Plaintiff is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. McComber v. Wells (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Plaintiff filed this motion at the outset of this litigation.

<u>Plaintiff Does not Cite to Proper Authority in Support of the Motion</u>

In California, there is generally no dedicated "motion to preserve evidence" in civil litigation. Instead, parties traditionally employ the practice of sending formal Preservation of Evidence Letters to trigger legal obligations. Absent formal discovery, the Discovery Act, which does contain provisions to compel production and for evidentiary sanctions, are not triggered.

Plaintiff's Motion requests that Defendant Redwood to preserve evidence. Plaintiff cites to the following authority in support of its motion: Code of Civil Procedure §§128(a)(1) and 128(a)(4) and 187. The Court finds that these statutory provisions are inapplicable. Cal. Code of Civ. Proc. § 128 relates to the Court's contempt authority. Specifically, "Contempt is a disobedience of court by acting in opposition to its authority, justice or dignity[.]" (*Raskin v. Superior Court of County of Los Angeles* (1934) 138 Cal.App. 668, 670.) Section §128 pertains to the Court's power to initiate contempt proceedings and specifically, §128(a) states: "Every court shall have the power to do all of the following: (1) To preserve and enforce order in its immediate presence. [¶] (4) To compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein."

Moreover, the reference to "order" in Code of Civil Procedure § 128(a)(1) is regarding the "inherent power to make sure judicial proceedings are conducted in a manner consistent with the orderly administrative of justice[.]" (*Lloyd v. Superior Court* (1982) 133 Cal.App. 3d 896, 899-900.) It is not a reference nor a statute that gives the Court a authority to issue any type of order it needs, as the motion attempts to assert. Additionally, Code of Civil Procedure §128(a)(4) pertains to the Court's ability to punish those who defy the Court's orders. It is not direct authority which gives the Court broad discretion to issue discovery preservation orders. As pointed out by Defendant, contempt is a punishment; it is not a discovery tool. There are no orders issued in this case which were disobeyed by Defendant. Plaintiff's reliance on the contempt statutes are misplaced.

Plaintiff's reliance on Code of Civil Procedure §187 is also ineffective as it does not provide any authority or support for the Court to issue the type of relief or order that Plaintiff is seeking. Section 187 is a "necessary and proper" clause which generally provides the Court with authority to use procedures or enact processes that may be adopted by a Court to enact or enforce a statutory or Constitutional provision. This general statute does not confer the specific authority to preserve evidence at this stage as suggested by Plaintiff.

Accordingly, the Court finds good cause to deny this Motion.

Ruling

1. Defendant's Objection to Plaintiff's Supplemental Declaration is **sustained**. The motion rules do not permit the filing of a supplemental declarations unless ordered by the Court. The Court did not request any supplemental declaration. Even if the declaration was requested, it was filed late.
2. Plaintiff's Motion is **denied**.
3. Defendant is directed to prepare and e-file a conforming order, attaching a copy of this tentative ruling within five (5) days from the date of this hearing.
4. The Court requests that this Court issue a Notice of Related Case. The related case is *Gary Dartez v. City of Antioch Rent Program* (Case No. N25-1849), which is assigned to the Hon. Leonard Marquez.

16. 9:00 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL**
FILED BY:
****TENTATIVE RULING:****
Summary:
The Court **grants** its own motion, *sua sponte*, for the appointment of a Discovery Referee for this case as set forth in this tentative ruling. Defendant's request for sanctions is reserved, pending review by the Discovery Referee. No appearance is required at the May 20, 2026 hearing, unless the Parties seek further guidance form the Court.

Background
This is a continued hearing on Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner and Continue the Trial and for monetary, issue and/or terminating sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). The Motion was continued from March 18, 2026 to May 18, 2026.

At the March 18, 2026 hearing, the Court made the following orders:

1. Defendant San Pablo Healthcare & Wellness Center LLC dba San Pablo Healthcare & Wellness Center's ("Defendant") Motion to Abate or alternatively to compel Joiner against Plaintiff Lynette Westbrook ("Plaintiff") is **denied** as moot.
2. Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Terminating Sanctions against Plaintiff Lynette Westbrook ("Plaintiff") is **denied**.
3. The Court **reserved** on ruling on Defendant San Pablo Healthcare & Wellness Center LLC's Motion for Issue sanctions against Plaintiff Lynette Westbrook ("Plaintiff"). Instead, Counsel for the Parties are ordered to:

   (a) Conduct a comprehensive meet and confer session either in person or remotely of such length sufficient to review each discovery request and each discovery response that are purportedly the subject of this Motion and which Defendant believes are not sufficient. Such conference shall not be cursory and should consist of significant and meaningful efforts by Counsel to address all items of outstanding discovery including a serious discussion as to why the information being sought is relevant and calculated to lead to the discovery of admissible evidence that will be of critical importance to this case; this conference shall contemplate the goal of resolving all discovery issues and should include an agreement whereby Plaintiff shall file supplemental responses that satisfy any outstanding issues within a reasonable time.

(b) Prepare a joint statement, signed by both Counsel, providing a status report to the Court communicating the results of the above "meet and confer" session, including a statement that summarizes each of outstanding discovery issues that have not been resolved, the specific and immediate plans to resolve the discovery issues and any outstanding issues which require resolution by the Court; this joint statement should provide the Court with sufficient information to make a decision whether to preclude the subject evidence from being introduced at trial. For the issues jointly resolved, the joint statement shall include proposed orders submitted to the Court that contains a stipulation resolving those issues, including an agreement to provide verified supplemental responses within a time certain;

(c) This joint statement shall be e-filed with the Court no later than May 1, 2026;

(d) The Court reserves the option to refer the resolution of this matter, and all future discovery disputes, to a Discovery Referee.

(e) The Court **continues** this Motion, *sua sponte*, on the reserved issues only to Wednesday, May 20, 2026 at 9:00 a.m.

4. Defendant's request for monetary sanction is **reserved**.

In compliance with this order, the Parties submitted the Joint Status Report re Discovery on May 1, 2026. In reviewing the joint status report, the Court notes that it has granted eight defense motions to compel on February 18, 2026, February 25, 2026, and March 4, 2026, and ordered Plaintiffs to pay monetary sanctions and to provide code compliant discovery responses. The Parties met and conferred regarding the discovery served. After meeting and conferring, Plaintiff provided additional responses, compromising of over 1,500 pages of written discovery responses, which Defendant has not completely reviewed. They are also presumably untimely. The Parties are continuing to meet and confer and intend to resolve all outstanding discovery issues. The Parties have requested a court order requiring Plaintiff to provide full, complete, code compliance responses within 15 days and to set an Order to Show Cause and compliance hearing date.

The Court further acknowledges that Plaintiff has scheduled additional discovery related motions scheduled for July 22, 2026, August 12, 2026, September 2, 2026 and October 7, 2026. This Court finds that the Parties are unable to resolve discovery disputes informally through the meet and confer process. The Court further finds that the Parties may benefit from the assistance of a Discovery Referee.

Analyses

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).
The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. While the Parties are attempting to meet and confer to resolve outstanding discovery disputes related to prior court orders, Plaintiff has recently produced over 1,500 pages of responsive documents to discovery requests served in 2025. Previously, the Court had raised concerns with Plaintiff's counsel about her firm's management of this case, which had resulted in the issuance of an order to show cause, and the granting of discovery motions against Plaintiff due to untimely oppositions. Additionally, the Court notes that there are (4) pending discovery motions on calendar in the matter, scheduled for August 12, 2026, September 2, 2026, October 7, 2026. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

1. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.
2. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on August 12, 2026, September 2, 2026, October 7, 2026, , and any and all subsequently filed discovery motions. The Discovery Referee shall also resolve any existing discovery disputes between the Parties arising out of previous discovery motions and pertaining to the Court's March 18, 2026 orders. The above hearing on these discovery motions are vacated from Department 16 are referred for further hearing to the Discovery Referee.
3. By no later than May 27, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by May 27, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Friday, May 29, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to

sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

4. No party has established an economic inability to the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be borne by Plaintiff Lynette Westbrook, who shall advance the fees for the initial retention of the Discovery Referee. The Court finds this a just allocation, as Plaintiff and her Counsel failure to timely comply with past discovery requests and orders triggered this entirely avoidable series of motion work. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Defendants' Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee, the Joint Status Reports, the papers related to the hearings calendared for August 12, September 2, and October 7, 2026 within ten (10) days of appointment.
6. The Clerk of Court shall vacate all Discovery hearings calendared for August 12, September 2, and October 7, 2026. Any and all existing and future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
7. The Court shall refer Defendant's request for Sanctions to the Discovery Referee for a report and recommendation.
8. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

17. 9:00 AM CASE NUMBER: N25-1545
CASE NAME: CLAIM OF:RONAN CONIGLIO
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Petitioner Crystal Coniglio's ("Petitioner") Petition for Approval of Compromise of Minor Ronan Coniglio's (DOB 6/17/2017) ("Minor") Claim is **<u>granted</u>**, as set forth below.

<u>Background</u>

On April 2, 2026 Petitioner Crystal Coniglio, parent for her child, Minor, filed the Petition through counsel Christopher Egan, Esq. to compromise the claim that Minor had against the Bay Church related to an accident that occurred on October 29, 2023 in Concord, California. The Bay Church set up an inflatable rock climbing wall. Minor Ronan Coniglio fell to the ground when the rope and harness holding him became unstable. This petition was previously granted, but the future periodic payment amount changed from the time the previous petition was filed and the date it was granted. Therefore, an amended petition is being filed to fund the future periodic payments.

In that accident, Minor sustained abdominal injury and minor laceration. Petitioner represents that Minor has received treatment at Children's Hospital in Oakland. He has fully recovered and there are no permanent injuries.

The Defendant's insurer collectively offered settlement in the amount of $50,000. A $20,000 payment will be made to Optum, the medical lien holder for Ronan's incident related injury. The $20,000 payment will satisfy all medical liens related to Ronan 's injury. There is a second payment of $30,000 payable to New York Life Insurance Company to be invested into a single premium deferred annuity to fund future periodic payment payable to Minor. The payments are $10,000 payable on 6/17/2035, $15,000, payable 6/17/2039, and $34,942.94 payable on 6/17/2043. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court makes the following orders:

1. Counsel is directed to prepare and file a proposed order amending the Order Approving Compromise of Minor's Claim filed on December 16, 2025 with the updated information.
2. The Court will execute the Proposed Order Approving Compromise of Minor's Claim upon receipt.
3. No appearance is required at the May 20, 2026 hearing.

18. 9:00 AM CASE NUMBER: N25-2304
CASE NAME: RAJ CHABRA VS. MOHAMMAD AMIRY
HEARING IN RE: APPLICATION FOR WRIT OF POSSESSION AFTER HEARING
FILED BY: CHABRA, RAJ
TENTATIVE RULING:*
Summary

Plaintiffs Raj Chabra and Nina Chabra's Application for Writ of Possession for 3503 Clayton Rd., Concord, CA filed on January 27, 2026 is unopposed. Accordingly, it is **granted**. The Court will execute the Writ of Possession After Hearing lodged with the Court on January 17, 2026. The Parties may obtain certified copies from Court Records. No appearance is required at the hearing on May 20, 2026.